



GENERAL INFORMATION FOR TENANT OF PROPERTY FACING FORECLOSURE

USE OF THIS FORM BY PERSONS WHO ARE NOT MEMBERS OF THE TEXAS ASSOCIATION OF REALTORS®, INC. IS NOT AUTHORIZED.
©Texas Association of REALTORS®, Inc. 2018

GENERAL NOTICE. You recently requested information from me regarding the property you are currently renting and notice you received that it could be facing foreclosure. As either the current or former property manager for the property you understand that my relationship is with the owner of the property and I do not represent you. I am not an attorney and cannot give you legal advice. You need to seek the advice of an attorney to receive information about any rights you may have. This notice is being furnished to you to provide general information about foreclosure and should not be considered legal advice.

PROTECTING TENANTS AT FORECLOSURE ACT. Recently, the federal government passed legislation offering certain protection to some tenants of residential property in foreclosure. Generally, tenants of foreclosed properties have the right to remain in the property for at least 90 days after foreclosure and may have the right to stay longer. In order for any protection to apply, you must be a tenant in good standing, current on rent and any late fees. For more information on the provisions contained in the Protecting Tenants at Foreclosure Act you may visit <http://nlihc.org/library/foreclosure>.

RENT PAYMENTS AND SECURITY DEPOSIT. Until the property is sold at a foreclosure sale, you should continue to make your rent payments as indicated in your lease. Once the property is sold, you should be notified regarding how and to whom your rent payments should be made. You should also be notified as to whom you should contact regarding your security deposit. Remember, in order to remain eligible to remain in the property and receive your security deposit back, you must remain a tenant in good standing and not abandon the property. The cost of any damage done to the property will be deducted from your security deposit.

RESOURCES FOR MORE INFORMATION. In the event you need further information, you should seek the counsel of an attorney or visit one of the websites listed below.

Texas REALTORS®: www.TexasRealEstate.com

Texas Low Income Housing Information Service: www.TexasHousing.org

Texas Tenants' Union: www.txtenants.org

Legal Aid of NorthWest Texas: www.lanwt.org

Texas RioGrande Legal Aid: www.trla.org

Lone Star Legal Aid: www.lonestarlegal.org

Federal Financial Institutions Examination Council (FFIEC) Consumer Help Center: <http://www.ffiec.gov/consumercenter>

This form was provided by:

Landlord

Date

Or signed for Landlord under written property management agreement or power of attorney:

By:

--

Printed Name: _____

Firm Name: _____

Broker's License No.: _____